

Health and Safety Legislation and Mental Health

According to the World Health Organization, around 12 billion working days are lost each year to depression and anxiety alone – at a cost of US \$1 trillion.¹

With this in mind, it is perhaps surprising that there is no single piece of UK legislation that deals with mental health in the workplace. However, mental health is indirectly covered by the Health and Safety at Work etc. Act 1974 (HSWA), The Management of Health and Safety at Work Regulations 1999² (MHSWR) and the Equality Act 2010.³

The HSWA places a duty on “every employer to ensure, so far as is reasonably practicable, the health, safety and welfare at work” of all its employees.⁴ This includes making sure that organisations provide an environment that doesn’t cause, contribute to – or adversely affect – the mental health of employees. It also covers common mental health conditions, such as stress.

In addition, the MHSWR requires employers to conduct risk assessments to identify potential hazards and risks to employees’ health and safety, including those that relate to mental health.

And if work-related factors or risks that might adversely impact mental health and wellbeing or might cause stress are identified, employers are required to take steps to prevent or mitigate these risks. For example, a risk assessment might highlight increased workloads and unrealistic deadlines as a potential risk to mental health because they may lead to anxiety and stress. This could be addressed by spreading workloads more evenly throughout the team, redistributing tasks, setting achievable deadlines and encouraging open communication around workload challenges.

The MHSWR also obliges employers to provide appropriate training, information and instruction to employees to ensure their health and safety. In practice, this would also include mental health training and resources, such as guidance on recognising the signs of common mental health issues like stress, reducing stigma around mental health conversations, promoting a supportive workplace culture and providing resources for seeking help.

In addition to the laws and regulations we’ve covered, there is also legislation designed to deal with discrimination against those with mental health issues at work. The Equality Act 2010 prevents discrimination, harassment and victimisation on the grounds of certain protected characteristics – including disability. Disability, as defined by the Act, may include a range of mental illnesses as long as the illness has “a substantial, adverse, and long-term effect on [an individual’s] ability to carry out normal day-to-day activities”.⁵

¹ World Health Organization (2024). Mental health at work. Available at: <https://www.who.int/news-room/fact-sheets/detail/mental-health-at-work> [Accessed 9 May 2025]

² Legislation.gov.uk (N.D.). The Management of Health and Safety at Work Regulations 1999. Available at: <https://www.legislation.gov.uk/uksi/1999/3242/contents> [Accessed 9 May 2025]

³ Legislation.gov.uk (N.D.). Equality Act 2010. Available at: <https://www.legislation.gov.uk/ukpga/2010/15/contents> [Accessed 9 May 2025]

⁴ Legislation.gov.uk (N.D.). Health and Safety at Work etc. Act 1974. Available at: <https://www.legislation.gov.uk/ukpga/1974/37/section/2> [Accessed 9 May 2025]

⁵ Mind (2023). Disability discrimination. Disability. Available at: <https://www.mind.org.uk/information-support/legal-rights/disability-discrimination/disability/> [Accessed 9 May 2025]

In addition, an individual classified as disabled under the Equality Act has the right to request 'reasonable adjustments' from their employer. These are actions to remove or reduce a disadvantage in relation to an individual's disability.⁶ The adjustment will depend on the particular circumstances and wishes of the person concerned. For example, if their mental health condition has been classified as a disability, potential reasonable adjustments might include things like removing tasks that are too stressful for the team member or making a change to their working hours.

⁶ Mind (2023). Disability discrimination. Reasonable adjustments. Available at: <https://www.mind.org.uk/information-support/legal-rights/disability-discrimination/reasonable-adjustments/> [Accessed 9 May 2025]